

Business partners' terms and conditions

Affiliates

Table of contents

1. Your obligations	3
2. Payments	4

Affiliates

Here, you will find the terms and conditions that relate specifically to our Affiliates (these “**Terms**”). These Terms should be read in conjunction with the [General Terms for Business Partners](#) (the “**General Terms**”). Any defined terms used in these Terms shall have the meaning given to them in the General Terms.

1. Your obligations

1.1. Cost Per Acquisition (“CPA”) Programme

- 1.1.1. To provide your services as an Affiliate, you must be registered with and authorised by Deriv Investments (Europe) Ltd. You must reside in a country where we offer our services.
- 1.1.2. By signing up for our CPA programme, you agree that you will exclusively target and obtain clients who reside in the European Union or any country where we (Deriv Investments (Europe) Limited) offer our products and services, subject to Clause 1.1.3.
- 1.1.3. You must not target or refer any clients who reside in Portugal, Spain, France, or any other country which we might notify you about from time to time.
- 1.2. You must make sure that any historical trading records, performance figures, and any other representations you make to your referrals in relation to our products and services are accurate and not misleading.
- 1.3. You will not hold or pool your referrals’ funds or third-party funds into your own account held with us.
- 1.4. You will not place trades on behalf of your referrals and shall not coerce them to trade according to your instructions.
- 1.5. You will not encourage your referrals to make deposits or place trades with the purpose of increasing your referral fees, whether in whole or in part, express or implied.
- 1.6. While we encourage you to be your referrals’ point of contact, you should never try to control your clients.
- 1.7. We shall not accept a referral application from an existing Deriv client who has traded on any of our platforms within one hundred and twenty (120) days of the date of the application.
- 1.8. We shall provide advertising collaterals and/or other marketing materials with links containing affiliate IDs, which we may modify from time to time.
- 1.9. In the event that a client accesses our website(s) through the links provided on your website or by using your affiliate IDs during the sign-up process and subsequently places a trade or conducts a transaction with us, we will exert reasonable efforts to ensure that this client is recognised as a referral from you. However, only correctly tagged customers will be attributed to you. We will not be held accountable if we are unable to identify a customer as a referral from you. It is your responsibility to ensure that all links are correctly tagged.
- 1.10. You are not permitted to become our client by using your affiliate link.
- 1.11. You must never indicate that we, or you, or any of your associates, will guarantee any client’s profit or limit any client’s losses.
- 1.12. You agree to:

- 1.12.1. Use your best endeavours to attract potential clients for us;
- 1.12.2. Only use marketing materials provided by us, or your own marketing materials that we have reviewed and approved, for the sole purpose of marketing Deriv;
- 1.12.3. Provide us with any information that you have become aware of which may result in any adverse or harmful consequences for us or the Deriv brand;
- 1.12.4. Inform any clients introduced to Deriv that the trading services and financial products are offered by or through us and not you; and
- 1.12.5. Provide services that enhance the client's financial knowledge.
- 1.13. You are only permitted to promote Deriv and its products on a dedicated website, or on your YouTube, Facebook, X, Instagram, or LinkedIn channel, that we have reviewed and approved before it goes live.
- 1.14. Other than through the channels mentioned in Clause 1.13, you must not promote Deriv through social media networks, ad networks, search engines, marketing emails, cold calling or other similar methods. You must not promote Deriv on any channels or mediums with inappropriate or offensive content.
- 1.15. You are required to display a prominent risk warning on your website and associated materials with the following wording: *"The products offered on the Deriv website are complex derivative products that carry a significant risk of potential loss. CFDs are complex instruments with a high risk of losing money rapidly due to leverage. 74% of retail investor accounts lose money when trading CFDs with this provider. You should consider whether you understand how these products work and whether you can afford to take the high risk of losing money. Content not intended for residents of France, Portugal, and Spain."*
- 1.16. We reserve the right to refuse your referrals' applications to open an account (or to close their accounts), if judged necessary, to comply with any requirements we may periodically establish or that may be required under applicable laws, rules, and regulations.
- 1.17. When your referrals open an account with us, we assume ownership of the database of names, contact information, and any other data of your referrals.
- 1.18. You are not authorised to provide asset management services, investment advice, or any recommendation for trading on Deriv's behalf. You must not provide portfolio management services for any client.
- 1.19. You must not provide trade signals to clients on our platforms unless we authorise you to do so.

2. Payments

- 2.1. As part of our CPA programme, you shall become eligible for a one-time payment of a set amount only upon the introduction of a bona fide client to us if the following conditions are met:
 - 2.1.1. We have verified and approved the client in accordance with our internal procedures and applicable legal requirements; and
 - 2.1.2. You enhance the quality of the relevant services to the client.
- 2.2. Neither your direct relatives nor any clients controlled by you are eligible to become our clients, and you will not be entitled to any referral fee or any other remuneration from us in relation to such relatives or controlled clients.

- 2.3. We will not pay you referral fees for any accounts that an associate of yours has opened. By associate, we mean any physical person or any type of legal person or entity or body of persons that has business, commercial, financial, entrepreneurial, employment, agency, family, personal, or other links or bonds with you. This includes any person who has the same personal information, IP address, physical or mailing address, telephone number, email address, or passport details as you.
- 2.4. You acknowledge that the referral fee payable to you in accordance with our policies fully compensates you for your activities and obligations under the Business Terms.
- 2.5. You are responsible for the payment of your own taxes, duties, fees, or other governmental levies or charges. Any fees that we pay you in connection with any of these Terms are exclusive of any such taxes, duties, fees, or levies.
- 2.6. You are not allowed to rebate any part of your referral fee to your referred clients, and if it comes to our attention that you are engaged in any such action, your account shall be revoked immediately.
- 2.7. We reserve the right to cancel, delay, or withhold payment of any commission fees to you in certain situations, including a suspected breach of law or a breach of any of the Business Terms.
- 2.8. We reserve the right to cancel any referral fees that you do not claim within two (2) years.
- 2.9. Referral fees shall only be payable for bona fide client referrals, and we reserve the right, at our sole discretion, to disregard duplicate accounts or nominee accounts that we see as non-bona fide clients.
- 2.10. Whilst we will endeavour to notify you of any changes with prior notice, we reserve the right to change our referral fees from time to time without prior notice.
- 2.11. If we identify that you have abused the business relationship with us in any way, we reserve the right to take one or more of the following actions:
 - 2.11.1. Terminate the business relationship with you and close your account;
 - 2.11.2. Withhold the payment of any referral fees that may be payable to you; or
 - 2.11.3. Claim back any referral fees paid to you where such referral fees were generated through abusive conduct and offset our claim against any funds that you hold with us.
- 2.12. If a client for whom you earn commissions initiates a chargeback, we reserve the right to deduct the commission portion of that chargeback from the total balance due to you for the current period. If this deduction exceeds the current amount due to you, your account may reflect a negative balance, requiring you to earn additional commissions to offset the chargeback before your balance returns to positive.
- 2.13. If an error is made in the calculation of your commission, we reserve the right to correct such a calculation at any time and to reclaim any overpayment that we have made to you before you can start earning commissions again.
- 2.14. We reserve the right to refuse to pay you any referral fees earned from any of your referred clients where we have identified abusive trading patterns or behaviour on their part.
- 2.15. Any referral fee already paid to you that was earned from a client who exhibits abusive trading patterns or behaviour shall be repayable to us, and it may be recouped from any funds held with us or from any referral fee payable to you.
- 2.16. If you engage in any manipulations of our systems and business in ways which result in any adverse, special, incidental, punitive, or consequential loss or damages to us, we may do the following in our absolute discretion:

- 2.16.1. Refuse to pay you any referral fee;
 - 2.16.2. Rescind any referral fee paid or payable by us to you against any amounts held by you in any of your accounts and/or the accounts of any individuals we determine are your associates; or
 - 2.16.3. Terminate your accounts and/or the accounts of any individuals we determine are your associates in the above-mentioned manipulation.
- 2.17. In the event of any errors, including errors in payments made to you, we reserve the right to take any action necessary to rectify the error, including correcting any inaccuracies, temporary or permanent suspension of access to the relevant products, modification, replacement or refund of funds, or refusing or reversing trades. You agree to promptly notify us of any errors that you become aware of and to repay any amounts paid to you in error.
- 2.18. In the event of termination of the Business Terms, any pending referral fees for bona fide referrals made prior to the termination shall (subject to the rest of the Business Terms) be paid in full.

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